

Grant, "a party having a debt due to him by the executor takes, in satisfaction of that debt, the assets which he knows belong to the executor only in that character, undoubtedly suspicion of fraud must always arise; but where a man is applied to for a loan of money there is no motive of fraud, for he may keep his money if not satisfied with the security" (e). But such is the *primâ facie* presumption only, for if there be legal evidence to the purchaser or mortgagee that the immediate or future advance is not on account of the testator's estate, but is meant to be applied to the private purposes of the executor, the Court must regard the transaction as fraudulent, and will not allow it to stand (f).

δ. Sale of specific chattel, and notice that there are no debts.

— A purchaser cannot deal with an executor for the [*481] purchase * of a chattel specifically bequeathed, if the purchaser have notice, (a fact, however, not easily to be proved, and not lightly to be presumed,) that there were no debts of the testator, or that they have since been discharged (a).

e. Payment to executor who will probably misapply it. — If a person owe money to a testator's estate, and be apprised that the executor *means to misapply it*, he cannot safely hand it over (b).

ς. Payment after long interval from testator's death. — If a great *length of time* has elapsed since the testator's death, it may be argued that here all debts must be *presumed* to be paid, and that the executor is a trustee for the next of kin, and that the money cannot be paid safely to any other than the next of kin as the *cestui que trust*. However, in the absence of all *mala fides* the executor's receipt will in general be sufficient. Where there had been a lapse of sixteen years,

(e) *M'Leod v. Drummond*, 14 Ves. 362; and see *Miles v. Durnford*, 2 De G. M. & G. 641.

(f) *M'Leod v. Drummond*, 14 Ves. 353; *S. C.* reversed, 17 Ves. 152; *Scott v. Tyler*, 2 Dick. 712, compare 17 Ves. 166; and see *Keane v. Robarts*, 4 Mad. 358.

(a) *Ewer v. Corbet*, 2 P. W. 149, per Sir J. Jekyll; and see *M'Mullen v. O'Reilly*, 15 Ir. Ch. Rep. 251.

(b) See *Watkins v. Cheek*, 2 S. & S. 199; *Eland v. Eland*, 4 M. & Cr. 427; *Stroughill v. Anstey*, 1 De G. M. & G. 648.